

those communications and did not provide responses to the Special Interrogatories.

4. No opposition or other responsive pleadings by Judgment Debtor have been filed with the Court.

#### Sanctions

Judgment Debtor's failure to respond to the Special Interrogatories even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

Judgment Debtor's failure to respond to meet and confer efforts regarding the Special Interrogatories constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Judgment Debtor constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Special Interrogatories, the Court finds that Judgment Debtor did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

#### Disposition

The Court finds and rules as follows:

1. The Motion to Compel is GRANTED.
2. **Judgment Debtor shall serve verified responses to the Special Interrogatories within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Special Interrogatories have been waived to the fullest extent permitted by applicable law. See Code Civ. Proc. §§ 2030.290.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Judgment Debtor shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Judgment Debtor shall pay monetary sanctions to the Judgment Creditor in the amount of **\$960.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the Judgment Creditor as a result of the foregoing conduct by Judgment Debtor. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Judgment Debtor within thirty (30) calendar days of notice of entry of this order.**
5. The Court shall enter the order after hearing.

17. 9:01 AM CASE NUMBER: C23-02250  
CASE NAME: MICHAEL GALLINETTI VS. CHRISTOPHER JOACHIM

**\*HEARING ON MOTION FOR DISCOVERY COMPEL MENTAL EXAMINATION OF PLAINTIFF MICHAEL GALLINETTI**

**FILED BY: JOACHIM, CHRISTOPHER LEE**

**\*TENTATIVE RULING:\***

Defendant Christopher Lee Joachim ("Defendant") filed a Motion to Compel Mental Examination of Plaintiff Michael Gallinetti on October 3, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on April 6, 2026. Subsequently, the Motion to Compel was continued by the Court for hearing to April 20, 2026.

**Background**

Plaintiff Michael Gallinetti ("Plaintiff") filed the Complaint on September 7, 2023. Plaintiff's Complaint alleges, among other things, that Defendant negligently caused a collision between Defendant's vehicle and Plaintiff's vehicle, injuring Plaintiff.

The case is presently set for jury trial on May 17, 2027.

**Analysis**

Because Plaintiff testified at deposition that he has suffered a brain injury as a result of the subject accident, including memory problems. See Memorandum of Points and Authorities (MPA) filed October 3, 2025, p. 1 *et seq.*; see also Robert F. Bennett, Jr. filed October 3, 2025 ("Bennett Decl."), ¶13. Plaintiff further testified he began consulting with a neurologist and "had a brain scan." See Bennett Decl., ¶13 and **Exhibit C** thereto.

Plaintiff seeks leave of Court for a mental examination of plaintiff under Code of Civil Procedure section 2032.310. See Code Civ. Proc. § 2032.310(a). A motion for such examination must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." *Id.* at § 2032.310(b). The motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.*

Efforts to meet and confer were made between the parties regarding an examination of plaintiff specific to "the brain injury at issue, including completion of neurological testing with a qualified provider." See Bennett Decl., ¶16. However, various disputes arose as to the particulars of the conduct of such examination. *Id.* Points of dispute include issues regarding the "presence of someone other than plaintiff and the examiner during the testing." *Id.*; see also Declaration of William D. Hooker, Ph.D. filed October 3, 2025.

No Opposition has been filed. No showing has been made by Plaintiff justifying any particular preconditions to be placed on the examination beyond the statutory provisions relating to the conduct of such examination. See Code Civ. Proc. §§ 2032.220 and 2032.320.

**Disposition**

The Court finds and rules as follows:

1. The Motion to Compel is GRANTED. The Court finds good cause for the subject examination.
2. Defendant to prepare the order after hearing pursuant to Rule 3.1312 of the California Rules of Court (CRC). The order shall specify the matters required by Code of Civil Procedure section 2032.320(d) as addressed in the Declaration of William D. Hooker, Ph.D.

18. 9:01 AM CASE NUMBER: C25-00713  
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION  
\*HEARING ON MOTION FOR DISCOVERY PRELIMINARY INJUNCTION TO COMPEL DEFENDANT  
HOMEOWNERS' ASSOCIATION TO PERFORM COMMON-AREA REPAIRS  
FILED BY: GUPTA, PRAVEEN  
\*TENTATIVE RULING:\*

Parties to Appear.

19. 9:01 AM CASE NUMBER: C24-01921  
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO  
\*HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER  
FILED BY: SEENO, DAVID  
\*TENTATIVE RULING:\*

This matter is CONTINUED by the Court *sua sponte* to April 27, 2026.

Law & Motion  
Add On

20. 9:00 AM CASE NUMBER: C25-03089  
CASE NAME: ROSE MARIE CUTINO VS. SERVICE FINANCE COMPANY, LLC  
\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR DEF G TECH SMART, INC.  
FILED BY: G TECH SMART, INC.  
\*TENTATIVE RULING:\*

Timothy R. Hanigan and Lang, Hanigan & Carvalho, LLP (“Counsel”) filed a motion to be relieved as counsel on March 24, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026. The motion was subsequently advanced for hearing to April 20, 2026 by the Court’s Order entered April 6, 2026.

#### Background

Counsel seeks to be relieved as attorneys for defendant G Tech Smart, Inc. (“G Tech”).

The supporting declaration filed by Counsel indicates that “[i]rreconcilable differences have arisen between counsel and client which have made it impossible” for Counsel to continue to represent G Tech. See Declarations filed March 24, 2026, ¶12. G Tech has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.